

[doc. web n. 10138964]
Provision of March 27, 2025
Register of provisions
n. 166 of March 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, general secretary;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, Regulation);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
the Code regarding the protection of personal data
(hereinafter, Code);

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter, Guarantor Regulation
No. 1/2019);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the general
secretary pursuant to Article 15 of the Guarantor
Regulation No. 1/2000 on the organization and
operation of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

Rapporteur Dr. Agostino Ghiglia;

PREMISED

1. Introduction

In the context of a series of checks carried out
ex officio by this Authority, from a verification conducted
on XX, it appears that the Municipality of Palma di
Montechiaro (hereinafter, Municipality) has not communicated
the contact details of the Data Protection Officer (hereinafter, DPO)
to the Authority – using the specific dedicated channel
available at the page [https://servizi.gpdp.it/
comunicazionerpd/s/](https://servizi.gpdp.it/comunicazionerpd/s/) – as required by Article 37, paragraph 7,
of the Regulation.

Furthermore, from a simultaneous check conducted on
the Municipality's official website, it was not

possible to find the contact details of the DPO, thus there were no elements to prove the designation, by the Municipality, of the DPO. Therefore, with a note dated XX (prot. n. XX), the Office, based on the elements acquired and the checks carried out, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, as it had not made either the publication or the communication to the Authority of the contact details of the DPO, in violation of Article 37, paragraph 7, of the Regulation, and as, based on this, it was not proven that the Municipality had actually designated the DPO, in violation of Article 37, paragraph 1, of the Regulation. With the same note, the aforementioned holder was invited to submit to the Guarantor defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With notes sent on XX (prot. n. XX) and XX (prot. n. XX), the Municipality, in addition to specifying that it did not request a hearing, submitted its defensive writings, in which it stated, in particular, that:

- "By determination of the General Secretary No. XX of XX, this entity has designated the [...] Data Protection Officer (DPO) of the Municipality of Palma di Montechiaro";
- "On XX, the communication of the contact details of the Data Protection Officer (DPO) was made, via online procedure."

Furthermore, following further discussions, it emerged that the Municipality subsequently proceeded to publish the contact details of the DPO on its official website, on the web page "Data Protection Officer (DPO)", made available at <https://www.comune.palmadimontechiaro.ag.it/flex/cm/pages/ServeBLOB.php/L/IT/IDPagina/10441>) and also accessible from the homepage of the same site under the "DPO" section at the bottom.

2. Outcome of the investigative activity

Pursuant to Article 37 of the Regulation, the data controller (and the processor) "[designates] systematically a data protection officer whenever: a) the processing is carried out by a public authority or by a public body, except for judicial authorities when exercising their judicial functions" (paragraph 1, letter a)) and "publishes the contact details of the data protection officer and communicates them to the supervisory authority" (paragraph 7).

Moreover, in the Guidelines on Data Protection Officers (DPOs), adopted by the Article 29 Working

Party on personal data protection on December 13, 2016, and amended on April 5, 2017, it is added that “The regulation does not contain any definition of ‘public authority’ or ‘public body’. The WP29 believes that such

definition should comply with national law; consequently, national, regional, and local authorities are public authorities or public bodies, but, depending on the applicable national law, the notion also includes a whole series of other public law entities. In these cases, the appointment of a DPO is mandatory” (paragraph 2.1.1), and that “Article 37, seventh paragraph, of the Regulation...”

****GDPR**** imposes on the data controller or the data processor the obligation to publish the contact details of the DPO, and to communicate the contact details of the DPO to the relevant supervisory authorities. These provisions aim to ensure that both the data subjects (within or outside the entity/organization that is the controller or processor) and the supervisory authorities can easily and directly contact the DPO without having to refer to another structure operating within the controller/processor” (par. 2.6).

The Guidance Document on the designation, position, and tasks of the Data Protection Officer (DPO) in the public sector, adopted by the Authority on April 29, 2021, with provision no. 186 (web doc no. 9589104), specifies that “there is an obligation of designation for all public entities, pursuant to letter a) of art. 37, par. 1, of the Regulation, such as, for example: state administrations, including those with autonomous organization, including educational institutions; national, regional, and local public non-economic entities; Regions and local authorities; Universities; Chambers of commerce, industry, crafts, and agriculture; National Health Service companies; independent authorities (see, for merely indicative and non-exhaustive purposes, the list in art. 1, paragraph 2, of Legislative Decree March 30, 2001, no. 165)” (par. 3), which states that “As for publication, this must be carried out on the administration's website, within a section easily recognizable by the user and accessible from the homepage, as well as within the section dedicated to the organizational chart of the entity and the related contacts,” and that “As for communication to the Authority, it is highlighted that the Authority has made available a specific online procedure not only for communication but also for the variation and revocation of the name of the designated DPO. This procedure represents the only contact channel that can be used for this specific purpose and is available at the page <https://servizi.gdpd.it/comunicazionerpd/s/>, where the specific instructions and related FAQs are also provided: moreover, attention is drawn to the entities to correctly enter the requested data, such as the identification of the data controller (the entity as a whole, and not the legal representative) and the completion of the tax code of the administration (and not the VAT number, or the tax code of another subject)” (par. 7).

That said, it is noted that the statements made by the Municipality during the investigation – the truthfulness of which may be subject to accountability under art. 168 of the Code – while deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Authority's regulation no. 1/2019 apply. This is because the designation of the DPO and, consequently, the related obligations of publication and communication of the relevant contact details, were only implemented by the Municipality in XX, following the initiation of the procedure by the Authority.

Therefore, the preliminary assessments of the Office are confirmed, and a violation of art. 37, pars. 1 and 7, of the Regulation is noted, as the Municipality, until XX, had not designated the DPO and, consequently, had neither published nor communicated the relevant contact details to the Authority. However, since the Municipality subsequently took steps to fulfill the aforementioned obligations, the conditions for the adoption of specific corrective measures under art. 58, par. 2, letter d), of the Regulation do not apply.

****3. Adoption of the injunction order for the application of the administrative pecuniary sanction (art. 58, par. 2, letter i), and art. 83 of the Regulation; art. 166, paragraph 7, of the Code)****

The Authority, pursuant to art. 58, par. 2, letter i), and art. 83 of the Regulation, as well as art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to art. 83, in

addition to [other] corrective measures [provided for] in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to art. 166, paragraph 7, of the Code” (art. 16, paragraph 1, of the Authority's regulation no. 1/2019).

In this regard, in the specific case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 4, of the Regulation.

The aforementioned administrative pecuniary sanction, imposed based on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation, in relation to which the following observations are made.

The failure to designate the DPO, until XX, deprived the Consortium of a mandatory and essential figure to ensure compliance with the Regulation. On the other hand, it is noted that the Municipality has taken steps to remedy the violations and that there are no previous relevant violations or prior measures against it under art. 58 of the Regulation.

In light of the aforementioned elements, evaluated in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €3,000 (three thousand) for the violation of art. 37, pars. 1 and 7, of the Regulation as the administrative pecuniary sanction deemed, pursuant to art. 83, par. 1,

of the Regulation, effective, proportionate, and deterrent.

It is also believed that the accessory sanction of publication on the website of the Authority of this provision should apply, as provided for by Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, concerning the failure to comply, until the XX, with an obligation that has become mandatory since 2018.

Finally, it is believed that the conditions set forth in Article 17 of the Authority's Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letter a), of the Regulation, declares the conduct of the Municipality of Palma di Montechiaro, described in the reasoning, to be unlawful, consisting of the violation of Article 37, paragraphs 1 and 7, of the Regulation;

ORDERS

the Municipality of Palma di Montechiaro, located at Via Fiorentino 89, 92020, Palma di Montechiaro (AG) – Tax Code 81000070847, pursuant to Article 58, paragraph 2, letter i), and Article 83 of the Regulation, to pay the sum of three thousand euros (€3,000) as an administrative pecuniary sanction for the violations indicated in the reasoning;

COMMANDS

the Municipality of Palma di Montechiaro to pay the sum of three thousand euros (€3,000), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with Article 27 of Law 689/1981.

In this regard, it is noted that the offender retains the option to settle the dispute by paying, always according to the methods indicated in the annex, an amount equal to half of the imposed sanction, within 30 days from the date of notification of this provision, pursuant to Article 166, paragraph 8, of the Code (see also Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011);

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of the injunction order on the website of the Authority;
- pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Authority's Regulation No. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Authority's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Article 78 of the Regulation, Article 152 of the Code, and Article 10 of Legislative Decree

150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 27, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei